

CASE SUMMARY

State v. Bobby Khurana

SC No. 13/2024 | FIR No. 310/2021, PS Welcome | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

|                  |                                                                                                                                                                                                                                                                                                                                 |
|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| COURT            | Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi                                                                                                                                                                                                                               |
| JUDGE            | Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)                                                                                                                                                                                                                                                                       |
| DATE OF JUDGMENT | 21 April 2026 (date of inspection / offence: 24 March 2021)                                                                                                                                                                                                                                                                     |
| PARTIES          | State (BSES Yamuna Power Ltd.) v. Bobby Khurana S/o Sh. Raju Khurana, R/o H. No. J-16, Welcome, Delhi (registered consumer/owner of the inspected premises)                                                                                                                                                                     |
| STATUTES INVOKED | Sections 135, 150 & 2(15) (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Section 106, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.                                                                                                                                                    |
| RESULT           | <b>Convicted under Section 135 read with Section 150 (abetment), Electricity Act, 2003.</b><br>The co-accused tenant Shabbo, who actually used the electricity, having died during the trial, proceedings against her stood abated; the owner Bobby Khurana was convicted.<br>Matter posted for hearing on quantum of sentence. |

CHARGE BEFORE THE COURT

Whether the tenant Shabbo (since deceased) dishonestly abstracted electricity at the inspected premises through a two-core cable hooked from BSES Pole No. GTR-I-438, the premises having no meter; whether the accused Bobby Khurana, the registered consumer/owner of those premises, abetted that theft by consciously permitting it, so as to be guilty under Section 135 read with Section 150 of the Electricity Act, 2003; and whether, once an unauthorised means of abstraction was proved, Bobby Khurana discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 24 March 2021, an inspection team of BSES Yamuna Power Ltd. headed by Sh. N. Neela Kannan inspected the premises. No electricity meter was installed; the supply was being drawn through a two-core cable connected directly from BSES Pole No. GTR-I-438. The connected load was 3.076 KW, used for domestic purposes; the tenant Shabbo was found to be the user of the electricity. The proceedings were videographed and an Inspection Report, Load Report and Seizure Memo (with an advisory notice) were prepared at the spot. Following the applicable tariff the company assessed a theft demand of Rs. 51,349/-, which went unpaid, and its Authorised Officer filed a complaint under Section 135 read with Section 150 of the Act.

Shabbo was arraigned as a co-accused but died during the trial, and the proceedings against her abated; the prosecution proceeded against Bobby Khurana as the registered consumer/owner of the premises, whose ownership was proved

through the seized documents. A notice under Section 251 Cr.P.C. was served and Bobby Khurana pleaded not guilty. The inspecting officials and the Investigating Officer were examined. Under Section 313 Cr.P.C. the accused denied the allegations and pleaded false implication, and led no defence evidence.

## REASONING OF THE COURT

### HEADNOTE

A registered consumer/owner who consciously permits a tenant to draw an unauthorised supply from the licensee's network abets the theft and is guilty under Section 135 read with Section 150 — and the death of the actual user (abating the case against her) does not absolve the abettor, whose liability is independent of whether the principal is ever tried. “Consumer” in Section 2(15) reaches the owner (**Lokesh Chandela**), and the compulsory presumption in the third proviso to Section 135(1) convicts the owner who leads no evidence of lawful, metered use.

**The offence was made out on proof of an unauthorised abstraction at the owner's premises.** The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the two-core cable hooked from BSES Pole No. GTR-I-438 to the unmetered premises as a clause (a) connection with the licensee's lines. On proof of that artificial means the third proviso's presumption of dishonest use arose.

**The owner is a “consumer” under Section 2(15) and answerable for abstraction at the premises.** Reproducing Section 2(15), the Court held that both the user and the owner/registered consumer fall within “consumer,” so Bobby Khurana was answerable once illegal abstraction was found at his premises — drawing support from **Lokesh Chandela v. State of NCT & Ors.** (Delhi HC, CrI. A. 479/2011).

**Conscious permission was abetment, and the user's death did not absolve the abettor.** As registered consumer/owner, Bobby Khurana knew the premises had no lawful metered supply, yet permitted Shabbo to occupy and draw electricity through the unauthorised connection. That conscious allowance constituted abetment under Section 150, which carries the punishment of the principal offence. That Shabbo had died during the trial — abating the case against her — did not absolve the abettor: his liability is independent of whether the principal is ever tried.

**The absence of a public witness did not weaken the prosecution.** No animosity of the officials was shown; on **Punjab State Electricity Board v. Ashwani Kumar**, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on **Sushil Sharma v. BSES Rajdhani Power Ltd.** (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity.

**The presumption was compulsory and, unrebutted, convicted.** Following **Neeraj Dutt** (compulsory “shall presume”) and **Hiten P. Dalal** (prudent-man standard), the Court held that Bobby Khurana, having led no defence evidence and produced no paid bills (**Mukesh Rastogi**; Section 106 onus), failed to rebut the presumption. That the theft bill was never settled underscored, rather than diluted, the case against him.

## INTERPRETATION OF THE ELECTRICITY STATUTES

### ELECTRICITY ACT, 2003

#### Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated

the drawing of supply to unmetered premises through a two-core cable hooked from the licensee's pole as satisfying the requirement of dishonest intention.

### Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

## HELD

The prosecution proved beyond reasonable doubt that no lawful metered supply existed at the inspected premises and that electricity was being abstracted through an unauthorised connection, which Bobby Khurana, as registered consumer/owner, consciously permitted. The death of the tenant Shabbo abated only the case against her. **Bobby Khurana is accordingly convicted under Section 135 read with Section 150 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

## SIGNIFICANCE

An owner-as-abettor conviction where the actual user (the tenant Shabbo) died during trial and the case against her abated. Five propositions stand out:

- **An owner can be convicted of abetment even where the user is never tried.** The registered consumer/owner who consciously permits a tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the death of the principal, abating her case, does not absolve the abettor.
- **“Consumer” under Section 2(15) reaches the owner.** The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (*Lokesh Chandela*).
- **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful, metered use — paid bills under the Section 106 onus (*Mukesh Rastogi*) — failing which the compulsory presumption convicts.
- **An unsettled bill is no mitigation of the charge.** Unlike the settled-bill cases, here the theft demand was never paid; the Court treated the unpaid, unrebutted assessment as fortifying the prosecution.
- **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (*Ashwani Kumar; Sushil Sharma*).

## CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

| CASE                                                                       | PRINCIPLE CITED FOR                                                                                                                                                              | TREATMENT |
|----------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <i>Punjab State Electricity Board v. Ashwani Kumar</i><br>2010 (7) SCC 569 | An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence. | Relied on |

| CASE                                                                                                   | PRINCIPLE CITED FOR                                                                                                                                                                                   | TREATMENT |
|--------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| <b><i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i></b><br>Delhi HC, CrI. A. 1060/2010<br>(22.12.2010) | Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.                                               | Relied on |
| <b><i>Lokesh Chandela v. State of NCT &amp; Ors.</i></b><br>Delhi HC, CrI. A. 479/2011                 | Both the user of electricity and the owner/registered consumer of the premises fall within “consumer” under Section 2(15), making the owner answerable for illegal abstraction found at the premises. | Relied on |
| <b><i>Neeraj Dutt v. State</i></b><br>SLP(CrI.) 6497/2020                                              | “Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.                                                                                  | Relied on |
| <b><i>Hiten P. Dalal v. Bratindranath Banerjee</i></b><br>2001 (6) SCC 16                              | A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.                                                 | Relied on |
| <b><i>Mukesh Rastogi v. North Delhi Power Ltd.</i></b><br>2007 (99) DRJ 108                            | The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.               | Relied on |

*This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.*